

24TRCV03070 24TRCV03070

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Case Number: 24TRCV03070 Hearing Date: July 28, 2026 Dept: B

Moving Parties: Plaintiff Joseph Manual

Lizarraga

Responding Party: Defendant Equity Residential

Management, L.L.C.

Motion for Terminating,

Issue, Evidentiary, and Monetary Sanctions

The Court considered the moving, opposition, and reply papers.

RULING

The

motion is DENIED.

BACKGROUND

On September

13, 2024, plaintiff Joseph Manual Lizarraga filed a complaint against Equity Residential, Park West Apartments, Park West (CA), EQR-Park West (CA) Vistas, Inc., EQR-Bethany Village Vistas, Inc., and Shelly Davis for negligence and premises liability.

On

January 15, 2025, plaintiff filed requests for dismissal as to each of the defendants except as to Equity Residential Management, L.L.C., which answered on January 6, 2025.

LEGAL

AUTHORITY

Spoliation

is the destruction or alteration of evidence. *R. S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal. App. 4th 486, 497. Spoliation undermines the search for truth and fairness by creating a false picture of the evidence before the trier of fact by destroying authentic evidence. *Cedars-Sinai Med. Ctr. v. Superior Court* (1998) 18 Cal. 4th 1, 9. In *Cedars-Sinai*, the Supreme Court held that a tort action may not be brought against a party for intentional spoliation of evidence where the spoliation is discovered before trial, in part because non-tort remedies are available, including discovery sanctions (CCP § 2023.030) and jury instructions (Evid. Code § 413). *Id.* at 11-13, 17 (“Destroying evidence in response to a discovery request after litigation has commenced would surely be a misuse of discovery within the meaning of section 2023, as would such destruction in anticipation of a discovery request.”). Spoliation is not limited to destroying evidence in response to a discovery request after litigation has commenced.

It also includes the “destruction or significant alteration of evidence or the failure to preserve evidence for another’s use in pending or future litigation.” *Williams v. Russ* (2008) 167 Cal. App. 4th 1215, 1223 (citing *Willard v. Caterpillar, Inc.* (1995) 40 Cal. App. 4th 892, 907, overruled on other grounds by *Cedars*, 18 Cal. 4th at 18, n. 4).

To

prevail on a motion seeking discovery sanctions for spoliation, the moving party must show the failure to preserve the evidence, and the loss of this evidence has a substantial probability of damaging the moving party’s litigation position. *Williams*, 167 Cal. App. 4th at 1227. Once the moving party establishes this basis, the burden shifts to the opposing party to show lack of prejudice from the loss of the evidence. *Id.*

DISCUSSION

Plaintiff

requests an order issuing terminating sanctions, issue sanctions, evidentiary sanctions, and/or monetary sanctions against defendant Equity Residential Management, L.L.C.

The

complaint alleges that plaintiff was lawfully on the premises of Park West Apartments, located at or near 9377 Lincoln Blvd., Los Angeles, on September 18, 2022. Complaint, ¶1. On September 18, 2022, plaintiff fell as a result of a dangerous conditions of the premises. Specifically, as plaintiff was at or near a parking structure, plaintiff suddenly and unexpectedly came into contact with a slippery substance on the floor, causing him to slip and fall. Plaintiff was injured as a result. Id., ¶13.

Plaintiff

asserts that on September 26, 2022, plaintiff's counsel sent a certified preservation of evidence letter to the Park West Apartments "to preserve any and all evidentiary items relating to the subject incident," including "any video footage, computer backups, electronically stored information and/or physical evidence including any furniture that may have been involved." As to the incident, plaintiff states that on September 18, 2022, he was visiting his mother, a resident of the complex, when he exited the passenger side of a vehicle and stepped into a liquid substance that had accumulated in the parking garage.

He suddenly slipped and fell onto his right side, sustaining significant injuries. Plaintiff contends that after plaintiff specifically requested defendant preserve evidence including "any video footage" and being put on direct notice of plaintiff's claim, and after multiple communications from plaintiff's counsel regarding his claims, defendant discontinued and replaced the surveillance system that was in operation at the time of plaintiff's fall, destroying the footage and depriving plaintiff of the opportunity to properly inspect it. Plaintiff argues that as a result of defendant's "willful and deliberate destruction of evidence," plaintiff suffered clear prejudice because defendant is contesting liability and causation of plaintiff's injuries and he cannot obtain this evidence to prove his claim and refute defendant's contentions.

Plaintiff

asserts that on March 19, 2025, plaintiff served written discovery and that on May 30, 2025, defendant provided responses stating that, "Responding Party is not in possession, control or custody of any documents responsive to this request and does not believe any such documents exists other than photographs produced by Plaintiff." Plaintiff also

asserts that on April 29, 2026, defendant's employee, Susan Pool, testified that she did nothing to preserve the footage that existed for September 18, 2022 past 3:00 a.m. and that defendant changed its surveillance system sometime

after September 2023. Plaintiff argues that defendant has “clearly spoiled the evidence in this case.”

In opposition, defendant argues that sanctions are not warranted because there was no spoliation of evidence. Defendant asserts that no such surveillance footage ever existed, there was no evidence to preserve, and there was no evidence to destroy. Defendant states that no security camera captured the location where plaintiff alleges he fell. Defendant asserts that plaintiff contends that he fell near the lower parking garage's gate, which is on the other side of Elevator 6 also known as the “red elevator,” but that the only camera in the area faced the mailboxes, which are on the front side of the red elevator. Defendant contends that plaintiff did not report the incident until two days later, on September 20, 2022, when he spoke to Park West Leasing Consultant Susan Pool, that he had slipped behind the red elevator sometime between the late evening of September 17 and the early morning hours of September 18. In response, defendant asserts, Pool reviewed the available surveillance footage covering the area near the red elevator for the period between 10:00 p.m. on September 17 and 3:00 a.m. on September 18, which did not show footage of plaintiff or any slip and fall incident. Pool did preserve screenshots from the surveillance system depicting plaintiff on September 20, and the fixed-angle security camera directed toward the mailboxes adjacent to the red elevator. Defendant further argues that as to the security cameras update, the security camera system used at the time of the incident deleted every thirty days, thus changing the system one year after the incident did not delete any potential footage that could be viewed at present time. Defendant also asserts that defendant, “like all apartment complexes, values security and conducted a routine update of their security system and cameras.”

Defendant also contends that plaintiff has not established that the alleged preservation letter was ever received by Park West or defendant Equity. Defendant notes that plaintiff relies exclusively on a U.S. Postal Service Certified Mail receipt allegedly attached to the preservation letter, but the receipt contains an invalid tracking number, no return receipt, or other proof of delivery. Susan Pool testified that she had never seen the alleged preservation letter. Defendant requests monetary sanctions against plaintiff and plaintiff's counsel for bringing the motion without proper justification.

In

reply, plaintiff argues that it is undisputed that defendant discontinued and replaced its surveillance system more than one year after being placed on notice of plaintiff's claim and defendant's own employee took no steps to preserve any footage beyond a five-hour window she "unilaterally selected." Plaintiff contends that the Court should not accept

defendant's premise that the camera did not cover the exact spot where plaintiff fell but even if it did, footage of the surrounding area could still have been highly probative as "it could show when the liquid first appeared or how long it had been accumulating" and the general condition and lighting of the garage, for example. Plaintiff also argues that he has been deprived of the opportunity to inspect the prior system, confirm its camera placement and coverage, or verify defendant's "post-hoc account of what it could or could not see." Plaintiff further asserts that defendant received notice of the September 18, 2022 incident at least eleven additional times before defendant discontinued and replaced its surveillance system, yet defendant "never expanded its one-time review of the incorrect chosen timeframe, never preserved any footage beyond it, and said nothing about any of this until its employee was deposed nearly four years later."

The

Court rules as follows: The Court finds

that plaintiff has not met his burden of showing failure to preserve the evidence or that the loss of such evidence has a substantial probability of damaging the moving party's litigation position. Plaintiff has not shown that the evidence, in the form of video footage of his slip and fall, even existed. Plaintiff has not produced any evidence that there was a camera in the parking garage pointed in the direction of the area where the incident occurred that would have captured it on video. Defendant's employee Pool's testimony indicates that there was only one camera that covered the area of the incident, but it pointed towards the mailboxes, and the area where the incident occurred was completely out of that camera's view.

Her testimony is corroborated by photographs submitted to the

Court. In his deposition, plaintiff

marked the area where he fell, in front of the exit gate for the parking garage. See Rexroad Decl., Ex. F. Screenshots from the video camera show that the area where plaintiff fell is not within the camera's view. See Rexroad Decl., Ex. E.

The

motion is thus DENIED.

ORDER

The
motion is DENIED.

Defendant
is ordered to give notice of the ruling.